educationally backward classes in relation to that state or union territory. In case of a state, the President issues the notification after consultation with the governor of the state concerned. But, any inclusion in or exclusion from the Central List of socially and educationally backward classes specified in a Presidential notification can be done only by the Parliament and not by a subsequent Presidential notification[2]. The 105th Amendment Act of 2021 also explained that the expression "Central List" means the list of socially and educationally backward classes prepared and maintained by and for the central government.

Further, the 105th Amendment Act of 2021 empowered a state or union territory to prepare and maintain a list of socially and educationally backward classes for its own purposes. The entries in a State List or Union Territory List may be different from the Central List. However, this can be done by a state or union territory only by law.

Unlike in the case of SCs, STs and OBCs, the Constitution has defined the persons who belong to the Anglo-Indian community. Accordingly, 'an Anglo-Indian means a person whose father or any of whose other male progenitors in the male line is or was of European descent but who is domiciled within the territory of India and is or was born within such territory of parents habitually resident therein and not established there for temporary purposes only'.

SPECIAL PROVISIONS FOR SCs AND STs

1. ***Reservation for SCs and STs in Legislatures:*** Seats are to be reserved for the SCs and STs in the Lok Sabha and the state legislative assemblies on the basis of population ratios.

Originally, this provision of reservation was to operate for ten years (i.e., up to 1960) only. But, this duration has been extended continuously since then by ten years each time. Now, under the 104th Amendment Act of 2019, this provision of reservation is to last until 2030.[3]

2. ***Claims of SCs and STs to Services and Posts:*** The claims of the SCs and STs are to be taken into consideration while making appointments to the public services of the Centre and the states, without sacrificing the efficiency of administration. However, the *82nd Amendment Act* of 2000 provides for making of any provision in favour of the SCs and STs for relaxation in qualifying marks in any examination or lowering the standards of evaluation, for reservation in matters of promotion to the public services of the Centre and the states.

3. ***National Commissions for SCs and STs:*** The President should set up a National Commission for the SCs to investigate all matters relating to the constitutional safeguards for the SCs and to report to him/her (Article 338). Similarly, the President should also set up a National Commission for the STs to investigate all matters relating to the Constitutional safeguards for the STs and to report to him/her (Article 338-A). The President should place all such reports before the Parliament, along with the action taken memorandum. Previously, the Constitution provided for a combined National Commission for SCs and STs. The *89th Amendment Act* of 2003 bifurcated the combined commission into two separate bodies.

4. ***Control of the Union over the Administration of Scheduled Areas and the Welfare of STs:*** The President is required to appoint a commission to report on the administration of the scheduled areas and the welfare of the STs in the states. He can appoint such a commission at any time but compulsorily after ten years of the commencement of the Constitution. Hence, a commission was appointed in the year 1960. It was headed by U.N. Dhebar and submitted its report in 1961.